

Court No. - 32

Case :- WRIT - C No. - 39533 of 2018

Petitioner :- Kanpur Logistics Park Private Limited And Another

Respondent :- Executive Engineer Electricity Urban Distribution Division And 2 Others

Counsel for Petitioner :- Anand Tiwari

Counsel for Respondent :- Suman Kumar Yadav

Hon'ble Shashi Kant Gupta,J.

Hon'ble Mrs. Manju Rani Chauhan,J.

Supplementary affidavit has been filed today is taken on record.

This writ petition has been filed, inter alia, for the following relief:

"(a) Issue a writ, order or direction, including a writ in the nature of certiorari quashing the order dated 23.11.2018 passed by the respondent no. 1."

Learned counsel for the petitioner has stated that the impugned order dated 23.11.2018 passed by the respondent no. 1-Executive Engineer, Electricity Urban Distribution Division, Kanpur Electricity Supply Company (KESCO), Kanpur is wholly arbitrary, illegal and unjust and is liable to be set aside. He further stated that no notice or opportunity was given by the respondents to the petitioners before passing the impugned order. He further submitted that according to the impugned order, a team of Officials of Kanpur Electricity Supply Company (KESCO) visited the premises of the petitioner and during visit, the said team found that some of the works which were being carried on in the premises of the petitioner were

industrial in nature and come under the category of HV-2, whereas some works carried on by the petitioners was commercial in nature, as such, fell under HV-1 category. However, in this regard, neither any report whatsoever has been prepared by the respondents nor the copy of the same was ever been supplied to the petitioners.

He further stated that demand of arrears of electricity dues from the petitioner by the respondent no. 1 is illegal and arbitrary. He further stated that no notice or opportunity whatsoever was given by the respondents while changing the category from HV-2 to HV-1 and raising the bill including the arrears of electricity dues as contained in the electricity bills from time to time. He further submitted that no letter was written either by the respondent no. 1 or by any other authority inviting objection from the petitioner in the matter in question. While passing the impugned order the version of the petitioners has not been considered by the Electricity Department and has raised an enhanced bill treating the unit under HV-1 category along with the arrears w.e.f. October, 2012.

He further submitted that the agreement executed between the parties for HV-2 category has not yet been cancelled and still the Electricity Department is raising enhanced bills treating the unit under HV-1 category. It has been further stated that till date, the said agreement is in force, as such, the respondents can not be permitted to change the tariff rates according to their own whims.

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It has been further stated that according to

Section 56 of the Electricity Act, 2003, in case any person neglects to pay any electricity charges or electricity dues to a licensee in respect of electricity supply transmission, the licensee after giving not less than fifteen days in writing, to such person and without prejudice to his rights to recover such charge or disconnect any electric supply line. In so far as the present case is concerned, no such time whatsoever has been given at any point of time by the respondents and as such the inclusion of arrears in the electricity bills of the petitioner is in violation of Section 56 of the Electricity Act, 2003 as well as Clause 6.15 of the Electricity Supply Code, 2005, specially when for the first time a demand was raised in the month of September, 2017 for the alleged arrears due since 2012.

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The matter requires consideration.

Sri S.K. Yadav, learned counsel appearing on behalf of the respondents-Electricity Department prays for and is granted four weeks time for filing counter affidavit.

The petitioners will have three weeks time thereafter for filing rejoinder affidavit.

List thereafter.

Considering the facts and circumstances of the case, the effect and operation of the order dated 23.11.2018 passed by the respondent no. 1 is hereby stayed until further orders of this Court and the Respondents shall not insist for deposit of the arrears which has been mentioned as Rs.34,74,876.59 paise in the bill dated 16.12.2017 and demand of interest on the said

amount provided the petitioners continue to deposit the current electricity dues as per Tariff HV-2.

Order Date :- 3.12.2018

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